

		Had counsel properly met and conferred prior to filing this motion, it likely would not have been necessary. <u>Accordingly, the Motion is GRANTED with 20 days leave to amend.</u> Defendant to give notice.
4.	30-2024-01440591 Feldblumb vs. Ruvalcaba	1. Motion to Compel Deposition (Oral or Written) Defendants Bernardo Ruvalcaba and Elba Leticia Lopez Ruvalcaba (together, “Defendants”) seek an order compelling third party Richard Mungo, D.D.S. to produce documents in response to the subpoena duces tecum served on September 9, 2025. Based on applicable law, as set forth herein, said motion is DENIED. Preliminarily, the Court notes that the proof of service of this motion does not indicate that the deponent was served. While Attorney Leeper declares that this motion was personally served on the deponent, “as the attached proof of service sets forth,” there is no such indication in the proof of service. (Leeper Decl. ¶ 8.) Even if the motion had been properly served, however, it is untimely. A party may serve a nonparty with a deposition subpoena commanding the production of business records for copying. (Code Civ. Proc., §§ 2020.010, subds.(a)(3), (b), 2020.020, subd. (b).) Proper service of a deposition subpoena obligates any resident of California to appear, testify and produce whatever documents or things are specified in the subpoena; and to appear in any proceedings to enforce discovery. (Code Civ. Proc., § 2020.220, subd. (c).) If the nonparty deponent does not comply, the requesting party may move for an order directing compliance with the subpoena. (See Code Civ. Proc., § 2025.480; see also Code Civ. Proc., § 1987.1.) Such a motion may be made pursuant to the authority for motions to compel depositions generally under Code of Civil Procedure section 2025.480. (See <i>Unzipped Apparel, LLC v. Bader</i> (2007) 156 Cal.App.4th 123, 127, 131.) The motion must be brought within 60 days after completion of the deposition record. (CCP § 2025.480(b); see <i>Unzipped Apparel, LLC v. Bader</i> (2007) 156 Cal.App.4th 123, 127) The deposition record is “complete” as of the “date specified for production” or the date objections are served. It is irrelevant that some documents might be produced thereafter. (<i>Board of Registered Nursing v. Sup.Ct. (Johnson & Johnson)</i> (2021) 59 Cal.App.5th 1011, 1032-1033.) “A nonparty must comply (or not) with the subpoena on the date specified for production. If a party is not satisfied with the nonparty's compliance, the party has 60 days in which to meet and confer with the nonparty. These meet and confer efforts do not affect the mandatory 60-day deadline. The meet and confer process is part of the 60-day period in which to file a motion; it does not extend it.” (<i>Board of Registered Nursing v. Superior Court of Orange County, supra</i>, 59 Cal.App.5th at 1034.) The 60-day deadline is mandatory and jurisdictional. (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 321.) Here, the date for production was September 24, 2025. (Leeper Decl., ¶ 2, Exh. A.) Attorney Leeper declares that the deponent neither objected to the subject subpoena nor has the custodian

		of records produced the requested documents; nor has plaintiff objected to the subject subpoena or filed any motion to quash. (Leeper Decl. ¶ 6.) This motion was filed on December 1, 2025, which is 68 days after the date for production. Accordingly, the motion is untimely and the Court has no jurisdiction to entertain it. Accordingly, it is DENIED. Moving Party to give notice.
5.	30-2024-01431856 Vargas vs. Hernandez	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production Plaintiff Yharetzy Vargas, a minor by and through her guardian ad litem, Yuliana Vargas Pompa (“Plaintiff”) moves to compel defendant Mario Lombera (“Defendant”) to serve verified responses to Form Interrogatories (Set One), Special Interrogatories (Set One), and Demands for Production (Sets One) and for an order imposing monetary sanctions against Defendant for her failure to serve timely responses. Verified responses to the discovery at issue have been provided. Thus, the Motions are DENIED as MOOT. However, Plaintiff’s requests for monetary sanctions against Defendant and her counsel are GRANTED in the reduced amount of \$600.00, as the Court finds no substantial justification for Defendant’s delay in providing responses until after these Motions were filed. (Code Civ. Proc., §§ 2030.300(d), 2031.310(h); Cal. Rules of Court, rule 3.1348(a).) Sanctions to be paid <u>within 30 days</u>. Moving party to give notice.
6.	30-2024-01413404 Ben’s Asphalt & Maintenance Company, Inc vs. W&Z Development Corporation	1. Case Management Conference 2. Demurrer to Amended Complaint 3. Demurrer to Amended Complaint 4. Motion for Attorney Fees 5. Motion to Strike Portions of Complaint <u>DEMURRER AND MOTION TO STRIKE:</u> Defendant W & Z Development Corporation dba Western Pacific Construction Services (“Defendant”) demurs to the second cause of action for fraud and moves to strike Plaintiff’s claim to punitive damages as alleged in the operative Second Amended Complaint (“SAC”). Plaintiff Ben’s Asphalt & Maintenance Company, Inc. (“Plaintiff”) opposes the demurrer and motion to strike. I. <u>Demurrer</u> A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.” ’ [Citation.]” (<i>Morris v. JPMorgan Chase Bank, N.A.</i> (2022) 78 Cal.App.5th 279, 292.)